

CV-23-003668 RHINEY, TIMOTHY LAMONTE, Jr vs RAMIREZ, JOSE MIGUEL – a) Defendant’s Motion for Order Compelling Responses to Supplemental Demand for Admissions and Production of Documents and for an Order Imposing Monetary Sanctions – GRANTED, unopposed. b) Defendant’s Motion Compelling Responses to Supplemental Interrogatories and for an Order Imposing Monetary Sanctions – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) The Court finds that Plaintiff has failed to timely respond to Defendant's properly propounded Special Interrogatories served on Plaintiff on November 6, 2025 or at all. The Court further finds that Defendant is entitled to responses to said discovery. Code of Civ. Proc., §§2017.010, 2030.290(b). Accordingly, Defendant's Motion is hereby granted. Any objections by Plaintiff to said discovery are hereby waived. Plaintiff is hereby ordered to provide verified, code compliant, objection-free responses to said Supplemental Interrogatories, Set One without objections within fifteen (15) days of the date of service of this order. (CCP §§2030.290(a) and (b); 2031.300(a).) The Court also finds that said failure to respond is without substantial justification and accordingly finds that Defendant is entitled to monetary sanctions of \$33.00 for attorney's fees and costs reasonably incurred in bringing this motion. Said sanctions are payable to Defendant's Counsel within fifteen (15) days of the date of service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a). b) The Court finds that Plaintiff failed to timely respond to Defendant's properly propounded Request for Production served on Plaintiff on November 6, 2025, or at all. The Court further finds that Defendant is entitled to responses to said discovery. Code of Civ. Proc., §§2017.010, 2031.300(a). Accordingly, Defendant's Motion is hereby granted. Any objections by Plaintiff to said discovery are hereby waived. (Code of Civ. Proc. § 2031.300(a) and (b)). Plaintiff is hereby ordered to provide verified, code compliant, objection-free responses to said Supplemental Requests for Production, Set One, within fifteen (15) days of the date of service of this order. The Court also finds that said failure to respond is without substantial justification and accordingly finds that Defendant is entitled to monetary sanctions of \$330.00 for attorney's fees and costs reasonably incurred in bringing this motion. Said sanctions are payable to Defendant's Counsel within fifteen (15) days of the date of service of this order. Civ Proc. Code §§2031.300(c), 2023.010 (h); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a).

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: a3d8896504c011b3e61fe1529264f6127e1b00e2cc283cbee7d313d94fa29b9f

CV-23-003668 – RHINEY, TIMOTHY LAMONTE, Jr vs RAMIREZ, JOSE MIGUEL – a) Defendant’s Motion for Order Compelling Responses to Supplemental Demand for Admissions and Production of Documents and for an Order Imposing Monetary Sanctions – GRANTED, unopposed. b) Defendant’s Motion Compelling Responses to Supplemental Interrogatories and for an Order Imposing Monetary Sanctions – GRANTED, unopposed.

a) The Court finds that Plaintiff has failed to timely respond to Defendant's properly propounded Special Interrogatories served on Plaintiff on November 6, 2025 or at all. The Court further finds that Defendant is entitled to responses to said discovery. Code of Civ. Proc., §§2017.010, 2030.290(b).

Accordingly, Defendant's Motion is hereby granted. Any objections by Plaintiff to said discovery are hereby waived. Plaintiff is hereby ordered to provide verified, code compliant, objection-free responses to said Supplemental Interrogatories, Set One without objections within fifteen (15) days of the date of service of this order. (CCP §§2030.290(a) and (b); 2031.300(a).)

The Court also finds that said failure to respond is without substantial justification and accordingly finds that Defendant is entitled to monetary sanctions of \$33.00 for attorney's fees and costs reasonably incurred in bringing this motion. Said sanctions are payable to Defendant's Counsel within fifteen (15) days of the date of service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a).

b) The Court finds that Plaintiff failed to timely respond to Defendant's properly propounded Request for Production served on Plaintiff on November 6, 2025, or at all. The Court further finds that Defendant is entitled to responses to said discovery. Code of Civ. Proc., §§2017.010, 2031.300(a).

Accordingly, Defendant's Motion is hereby granted. Any objections by Plaintiff to said discovery are hereby waived. (Code of Civ. Proc. § 2031.300(a) and (b)). Plaintiff is hereby ordered to provide verified, code compliant, objection-free responses to said Supplemental Requests for Production, Set One, within fifteen (15) days of the date of service of this order.

The Court also finds that said failure to respond is without substantial justification and accordingly finds that Defendant is entitled to monetary sanctions of \$330.00 for attorney's fees and costs reasonably incurred in bringing this motion. Said sanctions are payable to Defendant's Counsel within fifteen (15) days of the date of service of this order. Civ Proc. Code §§2031.300(c), 2023.010 (h); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a).